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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/676,957	07/27/2010	Mordechai Klein	182904-17430200	6505
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MDIP LLC POST OFFICE BOX 2630 MONTGOMERY VILLAGE, MD 20886-2630			EXAMINER CLARK, AMY LYNN	
			ART UNIT 1655	PAPER NUMBER
			MAIL DATE 10/23/2012	DELIVERY MODE PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Office Action Summary	Application No. 12/676,957	Applicant(s) KLEIN, MORDECHAI	
	Examiner Amy L. Clark	Art Unit 1655	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --
Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 14 August 2012.
- 2a) ☒ This action is **FINAL**. 2b) ☐ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☒ Claim(s) 1-6, 11-22, 27 and 28 is/are pending in the application.
- 5a) Of the above claim(s) 1-6 and 19-22 is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 11-18, 27 and 28 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
 Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
 Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).
- 12) ☐ The oath or declaration is objected to by the Examiner. Note the attached Office Action or form PTO-152.

Priority under 35 U.S.C. § 119

- 13) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
 a) ☐ All b) ☐ Some * c) ☐ None of:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|--|--|
| 1) ☐ Notice of References Cited (PTO-892) | 4) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date: ____ |
| 2) ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948) | 5) ☐ Notice of Informal Patent Application |
| 3) ☐ Information Disclosure Statement(s) (PTO/SB/08)
Paper No(s)/Mail Date: ____ | 6) ☐ Other: ____ |

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DETAILED ACTION

Acknowledgment is made of the receipt and entry of the amendment filed on 08/14/2012 with the amendment of claims 11-22, newly added claims 27 and 28 and the cancellation of claims 23-26.

Election/Restrictions

The election/restriction requirement is maintained for the reasons of record.

Any rejection found in the previous Office Action and not repeated herein has been withdrawn based upon Applicant's amendments to the claims.

The text of those sections of Title 35, U.S. Code not included in this action can be found in a prior Office action.

Claims 1-18, 27 and 28 are currently under examination.

Claim Rejections - 35 USC § 102

Claims 11 is rejected under 35 U.S.C. 102(b) as being anticipated by Mohammad (U*) (newly applied as necessitated by amendment).

Mohammad teaches a composition for treating gingival ulcers comprising a fine powder of Punica granatum (pomegranate) fruit rind (which is synonymous with peel).

Therefore, the reference anticipates the instantly claimed subject matter.

Claim Rejections - 35 USC § 103

Claims 15-18 remain rejected and newly added claims 27 and 28 are newly rejected under 35 U.S.C. 103(a) as being unpatentable over Mohammad (U*), in view of Mohammad Azam Khan (V*) (partially newly reapplied as necessitated by amendment).

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Mohammad teaches a composition for treating gingival ulcers comprising a fine powder of Punica granatum (pomegranate) fruit rind and Punica granatum (pomegranate) flower (please note that powdered pomegranate flower reads on pomegranate flower extract).

Mohammad Azam Khan teaches a composition in the form of a medicated oily preparation comprising Punica granatum (pomegranate) seed oil solution for local administration on an affected part with malignant ulcers (which reads on the limitations of step d).

Abu teaches a therapeutic drug/composition in the form of a thick paste for local application to a malignant ulcer comprising dried and powdered Punica granatum (pomegranate) fruit rind (peel) (which reads on the limitations of step d).

Although the references do not expressly teach a kit or instructions for applying the instantly claimed ingredients, nonfunctional descriptive material cannot render nonobvious an invention that would have otherwise been obvious. *In re Ngai*, **>367 F.3d 1336, 1339, 70 USPQ2d 1862, 1864 (Fed. Cir. 2004) (combining printed instructions and an old product into a kit will not render the claimed invention nonobvious even if the instructions detail a new use for the product).< Cf. *In re Gulack*, 703 F.2d 1381, 1385, 217 USPQ 401, 404 (Fed. Cir. 1983) (when descriptive material is not functionally related to the substrate, the descriptive material will not distinguish the invention from the prior art in terms of patentability).

It would have been obvious to orally administer the composition comprising pomegranate flower and peel used in the method taught by Mohammad and to apply a composition comprising a pomegranate oil extract and/or pomegranate peel powder directly to an ulcer because at the time the invention was made, it was known that a tablet comprising pomegranate flower and peel could be orally administered to treat ulcers and that a medical composition comprising pomegranate oil extract and/or pomegranate peel powder could be directly administered to an ulcer as clearly taught by Mohammad, Mohammad Azam Khan and Abu.

Thus, an artisan of ordinary skill would reasonably expect that administering a composition comprising pomegranate flower and peel and to then apply a composition comprising a pomegranate oil extract and/or pomegranate peel powder directly to an ulcer would provide an even more effective, faster

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and more complete treatment for ulcers. This reasonable expectation of success would motivate the artisan to employ a composition comprising pomegranate flower and peel in combination with a composition comprising a pomegranate oil extract and/or pomegranate peel powder directly to an ulcer to more effectively treat ulcers based upon the beneficial teachings of Mohammad, Mohammad Azam Khan and Abu.

Moreover, it would have been merely a matter of judicious selection to one of ordinary skill in the art at the time the invention was made to modify the referenced composition comprising the instantly claimed ingredients to provide an atomized composition and to modify the amounts of each ingredient in the composition because it would have been well in the purview of one of ordinary skill in the art practicing the invention to pick and choose a suitable form of oral administration for more direct and effective treatment of oral ulcers. Thus, the claimed invention is no more than the routine optimization of a result effect variable.

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

Accordingly, the claimed invention was prima facie obvious to one of ordinary skill in the art at the time the invention was made, especially in the absence of evidence to the contrary.

Response to Arguments

Applicant's arguments filed 08/14/2012 with regards to the 103 rejection have been fully considered but they are not persuasive.

Applicant argues that the prior art of record is not available to the public. Applicant further argues that reference U teaches 11 active ingredients and there is no evidence that the combination of compounds had or has any reproducible therapeutic benefit. Applicant further argues that reference V describes a composition comprising a combination of pomegranate seed extract and honey in undefined amounts. Applicant further argues that honey has been used to treat infected wounds and is a complex mixture of more than about 150 biologically active compounds and that there is no evidence that the

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combination has a reproducible therapeutic benefit) and that the combination of ingredients is not obvious. Applicant further argues that reference W describes a composition which is a mixture of pomegranate peel, lentil and sea water and that lentil have a therapeutic benefit but that there is no indication of the therapeutic benefit of pomegranate peel.

However, this is not found persuasive because all of the references qualify as prior art. As shown in the translation of references U and V, the reference(s) from which each passage was obtained is/are provided at the bottom of the page including the author, publication title and date of publication. Therefore, these documents are of public record. Furthermore, each of the references clearly teaches that Applicant's instantly claimed ingredients of pomegranate peel extract, pomegranate flower extract, pomegranate seed oil, and pomegranate peel powder are all used compositions for promoting wound healing. It was well known at the time the invention was made that pomegranate extracts from flowers, seeds and peels could all be used to treat ulcers. Reference U teaches specific amounts of each of the ingredients (and the combination of these two ingredients accounts for a large percentage of the entire composition). Reference V specifically states and teaches that pomegranate seed oil is a useful ingredient in the formulation for treating ulcers and Reference W clearly states that pomegranate peel is an active (useful) component of the composition, thus these ingredients would be expected to be active ingredients.

In response to applicant's argument that there is no teaching, suggestion, or motivation to combine the references, the examiner recognizes that obviousness may be established by combining or modifying the teachings of the prior art to produce the claimed invention where there is some teaching, suggestion, or motivation to do so found either in the references themselves or in the knowledge generally available to one of ordinary skill in the art. See *In re Fine*, 837 F.2d 1071, 5 USPQ2d 1596 (Fed. Cir. 1988), *In re Jones*, 958 F.2d 347, 21 USPQ2d 1941 (Fed. Cir. 1992), and *KSR International Co. v. Teleflex, Inc.*, 550 U.S. 398, 82 USPQ2d 1385 (2007). In this case, since it was known that the instantly claimed ingredients could be used in formulations for promoting wound healing, it would be expected that combining the instantly claimed ingredients would provide an even more effective

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composition for promoting wound healing. Therefore, the rejection is maintained for the reasons of record.

Conclusion

No claims are allowed.

Applicant's amendment necessitated the new ground(s) of rejection presented in this Office action. Accordingly, **THIS ACTION IS MADE FINAL**. See MPEP § 706.07(a). Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire THREE MONTHS from the mailing date of this action. In the event a first reply is filed within TWO MONTHS of the mailing date of this final action and the advisory action is not mailed until after the end of the THREE-MONTH shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any extension fee pursuant to 37 CFR 1.136(a) will be calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than SIX MONTHS from the date of this final action.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

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Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Amy L Clark/
Primary Examiner, Art Unit 1655